

1.

CASE #	CASE NAME	HEARING NAME
CVRI2205203	BUTLER VS WINCHELL	MOTION TO VACATE DEFAULT JUDGMENT AND TO RESTORE CASE TO TRIAL CALENDAR

Tentative Ruling:
GRANT

The Judgment After Trial by Court entered on February 20, 2026, is hereby set aside. Matter is set for a Trial Setting Conference on August 20, 2026, at 8:30am, D-4.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2304403	KANDILIAN VS BMW NORTH AMERICA, LLC	MOTION TO EXCLUDE PLAINTIFF'S EXPERT GABE PAREDES AND DISQUALIFY PLAINTIFF'S LAW FIRM BY BMW NORTH AMERICA, LLC

Tentative Ruling:
DENY the Motion to Exclude Gabe Paredes and Disqualify Plaintiff's Firm

Plaintiff's objection No.1 to the declaration of Travis Brown is SUSTAINED on the grounds of speculation, lack of foundation and hearsay.

Plaintiffs' objections Nos. 1-8 to the Declaration of Luis Holguin are SUSATINED on the grounds of speculation, lack of foundation and hearsay.

Defendant does not meet its initial burden to show that Plaintiff's expert witness, Gabe Paredes, possesses confidential information protected by the attorney-client privilege or the attorney work product rule, that is materially related to this action. Defendant has not established that Paredes possesses any confidential information and/or privileged information in this case that would implicate the rebuttable presumption that such information was disclosed to Plaintiff's counsel. The motion to disqualify Plaintiff's counsel is also denied.

The three supplemental declarations filed by Defendant after the court issued its Order to set aside the ruling of June 3, 2026, and set the matter for further hearing today, do not provide any new or additional information that would change the court's ruling to deny the motion.

The Declaration of Gayatri Raghunandan provides no new information that addresses the dispositive test for disqualification set forth in *Shadow Traffic Network v. Superior Court* (1994) 24 Cal.App.4th 1067---whether Paredes possessed confidential attorney-client information materially related to this proceeding. The fact that Plaintiff's attorney represented Paredes does not suggest any conflict that is material to the instant action.

The Declaration of Samantha Sheehan is equally non-material to the issue of disqualification, as it merely restates that Plaintiff's counsel previously represented Paredes and that Paredes intended to sue Defendant. The Declaration of Luis Holguin shows that Paredes had access to potentially confidential information, but it does not provide any additional information showing that Paredes was in fact exposed to confidential information relevant and material to this action. Paredes' pre-departure conduct does not lead to an inference that he obtained relevant confidential information material to this case.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2401575	FIERRO BROWN VS GENESIS MOTOR AMERICA, LLC	MOTION TO COMPEL PRODUCTION OF PLAINTIFF'S VEHICLE FOR INSPECTION

Tentative Ruling:

Continue the Motion to August 11, 2026, at 8:30am, D-4.

The parties have agreed to a vehicle inspection on July 23, 2026. If the inspection does not go forward on July 23, 2026, the parties are Ordered to meet and confer further prior to the continued hearing date, and to file a joint statement outlining the remaining issues at least 10 days prior to the continued hearing date.

If no joint statement is filed, the court will assume that the inspection went forward, and the Motion will be denied.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2500061	THE PEOPLE OF THE STATE OF CALIFORNIA VS VALUE HOTELS, CORP.	MOTION TO APPOINT RECEIVER

Tentative Ruling:

GRANT